

Court No. - 21

Case :- WRIT - C No. - 19481 of 2022

Petitioner :- Smt. Rekha Chahar

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Kuldeep Singh Chahar

Counsel for Respondent :- CSC, Baleshwar Chaturvedi

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Dr. Yogendra Kumar Srivastava, J.

The petitioner has applied for 2 KVA electric connection by depositing the process fee on 9.1.2022. The same has not been granted to her on the pretext that the transformer is already overloaded and its capacity has to be increased by 16 KVA and consequently, the charges to be incurred in this behalf i.e., a sum of Rs.48204/- has to be deposited by the petitioner.

We call upon respondent No.2 to file his personal affidavit disclosing (1) the total load on the transformer (2) the total cost which is to be incurred in enhancing the capacity of the transformer (3) how Rs.48,204/- is being demanded from the petitioner (4) whether the amount to be spent in enhancing the capacity is to be borne by the petitioner alone or by all consumers.

We leave it open to respondent No.2 to re-examine the matter in the meantime and if it is found that the demand being made from the petitioner is unjustified, to release the electricity connection.

We clarify that if we find violation of any provision of law on part of respondents in raising impugned demand from the petitioner, it will be treated to be an act of sheer harassment and court shall be compelled to recommend for disciplinary proceedings being undertaken against the person responsible.

List as fresh on 2.8.2022.

The order shall be communicated to the concerned respondent by his counsel within 48 hours for ensuring compliance.

When matter is listed next, name of Sri P.N. Rai shall be shown as counsel for the respondents.

Order Date :- 15.7.2022

skv

(Dr. Y. K. Srivastava, J.) (Manoj Kumar Gupta, J.)

Court No. - 21

Case :- WRIT - C No. - 19481 of 2022

Petitioner :- Smt. Rekha Chahar

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Kuldeep Singh Chahar

Counsel for Respondent :- CSC, Baleshwar Chaturvedi, Paras Nath Rai

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Ram Manohar Narayan Mishra, J.

Counsel for the electricity department states that he has filed affidavit of respondent No.2 on 1.8.2022 in the Registry, which is not on record.

Office to trace out the same and place the instant matter as fresh before appropriate Bench on 31.8.2022.

Order Date :- 23.8.2022

skv

(R.M.N. Mishra, J.) (Manoj Kumar Gupta, J.)

Court No. - 40

Case :- WRIT - C No. - 19481 of 2022

Petitioner :- Smt. Rekha Chahar

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Kuldeep Singh Chahar

Counsel for Respondent :- CSC, Baleshwar Chaturvedi, Paras Nath Rai

Hon'ble Siddhartha Varma, J.

Hon'ble Vikas Budhwar, J.

As prayed, list this case on 14.09.2022 as fresh.

Order Date :- 31.8.2022

vkj

Court No. - 29

Case :- WRIT - C No. - 19481 of 2022

Petitioner :- Smt. Rekha Chahar

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Kuldeep Singh Chahar

Counsel for Respondent :- CSC, Baleshwar
Chaturvedi, Paras Nath Rai

Hon'ble Manoj Misra, J.

Hon'ble Rajendra Kumar-IV, J.

Pursuant to the order dated 15.07.2022, compliance affidavit has been filed in which attempt has been made to explain as to why charges have been demanded. In the affidavit, the relevant provisions of law under which those charges have been demanded have not been disclosed.

We, therefore, require the learned Counsel for the respondent nos. 2 and 3 to file better affidavit, disclosing the relevant provisions of U.P. Electricity Code or the tariff order or the relevant rules or Government Orders under which the charges are being demanded from the petitioner.

For the said purpose, two weeks time is allowed to the learned Counsel for the respondent nos. 2 and 3.

List this case on 13.10.2022, as fresh.

Order Date :- 23.9.2022

I.A. Siddiqui

Court No. - 29

Case :- WRIT - C No. - 19481 of 2022

Petitioner :- Smt. Rekha Chahar

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Kuldeep Singh Chahar

Counsel for Respondent :- CSC, Baleshwar Chaturvedi, Paras Nath Rai

Hon'ble Manoj Misra, J.

Hon'ble Umesh Chandra Sharma, J.

The learned counsel for the petitioner states that, till date, better affidavit as required by order dated 23.09.2022 has not been filed by the respondents 2 and 3, who are represented by Sri Baleshwar Chaturvedi, Advocate.

In view of the above, two weeks further time is allowed.

List this matter, as fresh, on 15th November, 2022, by which date, affidavit be filed as directed by order dated 23.09.2022.

Information of this order shall be provided to Sri Baleshwar Chaturvedi, who is representing the respondents 2 and 3.

Order Date :- 19.10.2022

AKShukla/-

Court No. - 40

Case :- WRIT - C No. - 19481 of 2022

Petitioner :- Smt. Rekha Chahar

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Kuldeep Singh Chahar

Counsel for Respondent :- CSC, Baleshwar Chaturvedi, Paras Nath Rai

Hon'ble Siddhartha Varma, J.

Hon'ble Ajit Singh, J.

Put up this case as a fresh case on 06.12.2022 in the top ten cases.

Order Date :- 24.11.2022

vkj

(Ajit Singh, J.)

(Siddhartha Varma, J.)

Court No. - 3

Case :- WRIT - C No. - 19481 of 2022

Petitioner :- Smt. Rekha Chahar

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Kuldeep Singh Chahar

Counsel for Respondent :- CSC, Baleshwar
Chaturvedi, Paras Nath Rai

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Rajendra Kumar-IV, J.

None appears for the petitioner even in the revised call.

The case is passed over.

Order Date :- 6.12.2022

Manoj

Court No. - 40

Case :- WRIT - C No. - 19481 of 2022

Petitioner :- Smt. Rekha Chahar

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Kuldeep Singh Chahar

Counsel for Respondent :- CSC, Baleshwar Chaturvedi, Paras Nath Rai

Hon'ble Siddhartha Varma, J.

Hon'ble Vipin Chandra Dixit, J.

Affidavit filed today be kept on record.

From the two affidavits which the Electricity Department had filed it is not clear as to how the duty cast upon the licensee had been fulfilled under the Clauses 4.1 and 4.2 of the U.P. Electricity Supply Code, 2005. These charges do not mention about the fact that the money had to be charged from the applicant who desired to get a fresh electricity connection.

Under such circumstances, we are absolutely not satisfied with the affidavits which have been filed.

Let a further affidavits be filed of the Executive Engineer, respondent No.2 to explain why despite the provisions contained in Clauses 4.1 and 4.2 of the Electricity Supply Code, 2005, money is being demanded from the petitioner for the enhancement of the transformer load.

List this case as a fresh case on 12.01.2023.

Order Date :- 22.12.2022

vkj

Court No. - 3

Case :- WRIT - C No. - 19481 of 2022

Petitioner :- Smt. Rekha Chahar

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Kuldeep Singh Chahar

Counsel for Respondent :- CSC, Baleshwar Chaturvedi, Paras Nath Rai

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Heard learned counsel for the parties.

This writ petition has been filed praying for the following reliefs :-

"i). Issue a writ, order or direction in the nature of mandamus and direct to the respondents to provide permanent electricity residential connection of 2KW to the petitioner R/o H.No.26 Gangotri Vihar-Rohta, Gwalior Road, District Agra from the electricity feeder situated at Bad, District Agra.

(ii) Issue a writ, order or direction in the nature of mandamus commanding and directing to the respondents to consider the grievance of the petitioner raised in the application/representation dated 15.05.2022 (Annexure No.6 to the writ petition) within stipulated period as fixed by this Hon'ble Court."

We are of the considered view that the grievance of the petitioner needs to be examined at the first instance by the respondent no.2.

Therefore, without expressing any opinion on merits of the case of the petitioner, we **dispose of** this writ petition giving liberty to the petitioner to submit a fresh representation before the respondent no.2 raising his grievance, within three weeks from today alongwith a certified copy of this order and in the event, such a representation is filed within the aforesaid stipulated period, the respondent no.2 shall decide it in accordance with law, within next four weeks.

Order Date :- 18.1.2023

SK